

BC714153 BC714153

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: BC714153 Hearing Date: June 30, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: June

30, 2026

CASE NAME: Tina

Turrieta v. Lyft, Inc.

CASE NO.: BC714153

MOTION

FOR FINAL DISBURSEMENT OF REMAINING SETTLEMENT FUNDS

MOVING PARTY: Plaintiff

Tina Turrieta

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order approving payment to the Settlement Administrator of costs incurred from the Reserve Fund and approving final disbursement of the remaining, uncashed settlement funds to the State of California's Unclaimed Property Fund.

TENTATIVE RULING:

1. Motion

for final disbursement of remaining settlement funds is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On July 13, 2018, Plaintiff Tina Turrieta ("Plaintiff"), filed a representative Private Attorneys General Complaint against Defendant Lyft, Inc. ("Defendant") pursuant to Labor Code Private Attorneys General Act of 2004 (Lab. Code, § 2698 et seq.) ("PAGA"). Plaintiff alleges that Lyft misclassifies its Drivers as independent contractors instead of employees in order to deprive Drivers of benefits due them and to gain an economic advantage. The causes of action asserted in the Complaint are:

Willful
misclassification

Failure
to pay overtime wages

Failure
to timely pay wages

Failure
to pay wages on termination

Failure
to provide an accurate itemized paystub

Failure
to reimburse business expenses

On September 18, 2024, the California Supreme Court issued a Remittitur affirming the Court of Appeal which affirmed the trial court's decision to deny Brandon Olson's Motion to Intervene. Olson had filed a separate PAGA action against Lyft and was objecting to the settlement counsel for Turrieta had negotiated with Lyft. Olson filed an appeal to the Court of Appeal and thereafter petitioned for review, which was granted.[1]

On October 28, 2024, Plaintiff filed a motion for attorney fees on appeal which the court DENIED.

On April 8, 2026, Plaintiff filed the instant motion for order for final disbursement of remaining settlement funds. Oppositions were due on or before June 16, 2026. As of June 24, 2026, the court has not received any oppositions.

ANALYSIS:

Plaintiff moves for an order approving an additional \$45,844.42 in funds for the Settlement Administrator to be paid from the Reserve Fund and an order remitting \$2,938,154.06 in uncashed settlement checks plus the remaining \$104,155.18 of the Reserve Fund to be distributed to the California State Controller's unclaimed Property Fund. Defendants did not file an opposition.

The settlement agreement expressly provides part of the relief Plaintiff seeks. The agreement provides:

All funds not claimed within 180 days of mailing of payment and any unused portions of disbursed funds shall be sent to the California State Controller's Office Unclaimed Property Fund with an identification of the amount of unclaimed or unused funds attributable to each PAGA Settlement Group Member.

(Declaration of Jacqueline Treu ¶ 2, Exhibit 1 [III(C)(2)(i) "Distribution Process"]) This covers remittance of the \$2,938,154.06 in uncashed checks.

As for the administrator, the settlement agreement also explicitly states that the costs of administration are not to exceed \$500,000.00. (Exhibit 1 at III(C)(1)(iv).)

The reserve fund is for "necessary expenses resulting from any errors or disputes in the payments." Arguably, attempted intervention by two other Plaintiff is a dispute in the payments.. In the absence of opposition, the court finds that the interpretation sought by Plaintiff is reasonable.

Accordingly, the court GRANTS Plaintiff's motion for final

disbursement of remaining settlement funds.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for final disbursement of remaining settlement funds is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: June 30, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]Million

Seifu had also sought to intervene in the trial court. Seifu's motion was similarly denied by the trial court and affirmed by the Court of Appeal. Seifu did not timely seek review by the Supreme Court.